

IN THE SENATE

SENATE BILL NO. 1328

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO COUNSEL FOR THE IDAHO DEPARTMENT OF LANDS; AMENDING SECTION 38-107, IDAHO CODE, TO REVISE PROVISIONS REGARDING UNCONTROLLED FIRES; AMENDING SECTION 38-113, IDAHO CODE, TO REVISE PROVISIONS REGARDING FOREST LAND PROTECTION AND LIENS; AMENDING SECTION 38-118, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTY OF RAILROADS AND PENALTIES; AMENDING SECTION 38-123, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISPOSAL OF SLASH, INJUNCTIONS, LIENS, AND ENFORCEMENT; AMENDING SECTION 38-128, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTIES OF PROSECUTING ATTORNEYS AND GENERAL COUNSEL FOR THE DEPARTMENT OF LANDS; AMENDING SECTION 38-808, IDAHO CODE, TO REVISE PROVISIONS REGARDING RECORDING LOG BRANDS AND PENALTIES; AMENDING SECTION 38-1220A, IDAHO CODE, TO REVISE A PROVISION REGARDING CIVIL ENFORCEMENT ACTIONS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 38-1221, IDAHO CODE, TO REVISE PROVISIONS REGARDING CIVIL ENFORCEMENT ACTIONS, CRIMINAL ACTIONS, AND PENALTIES; AMENDING SECTION 38-1307, IDAHO CODE, TO REVISE PROVISIONS REGARDING CIVIL ENFORCEMENT ACTIONS; AMENDING SECTION 47-314, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE OIL AND GAS CONSERVATION COMMISSION; AMENDING SECTION 47-718, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWER OF THE DIRECTOR OF THE DEPARTMENT OF LANDS TO INITIATE LEGAL ACTION; AMENDING SECTION 47-1317, IDAHO CODE, TO REVISE PROVISIONS REGARDING APPLICATION, PERMIT, AND BOND FOR PLACER OR DREDGE MINING; AMENDING SECTION 47-1324, IDAHO CODE, TO REVISE PROVISIONS REGARDING ENFORCEMENT AND PENALTIES FOR VIOLATIONS; AMENDING SECTION 47-1513, IDAHO CODE, TO REVISE PROVISIONS REGARDING AN OPERATOR'S FAILURE TO COMPLY; AMENDING SECTION 58-120, IDAHO CODE, TO REVISE PROVISIONS REGARDING GENERAL COUNSEL FOR THE DEPARTMENT OF LANDS; AMENDING SECTION 58-312, IDAHO CODE, TO REVISE PROVISIONS REGARDING OCCUPATION OF STATE LAND WITHOUT A LEASE; AMENDING SECTION 58-1308, IDAHO CODE, TO REVISE PROVISIONS REGARDING PENALTIES; AMENDING SECTION 67-1406, IDAHO CODE, TO PROVIDE AN EXCEPTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 38-107, Idaho Code, be, and the same is hereby amended to read as follows:

38-107. UNCONTROLLED FIRES A NUISANCE -- ABATEMENT -- CIVIL LIABILITY. (1) Any forest or range fire on any land within the state of Idaho, regardless of ownership status, that is burning out of control or without adequate and proper precautions having been taken to prevent its spread, is hereby declared a public nuisance, by reason of its menace to life and/or property. Any person responsible through his conduct, acts and/or control of property or operations for either the starting or the existence of such

1 fire is hereby required to make a reasonable effort to control or extinguish
 2 it immediately, without awaiting instructions from the director of the de-
 3 partment of lands or a fire warden. The director of the department of lands
 4 or any fire warden may summarily abate the nuisance thus constituted by con-
 5 trolling or extinguishing such fire and the person willfully or negligently
 6 responsible for the starting or existence of such fire shall be liable for
 7 the costs incurred by the state or its authorized agencies in controlling
 8 or extinguishing the same. The amount of such costs shall be recovered by
 9 a civil action prosecuted ~~in the name of the state of Idaho~~ pursuant to sec-
 10 tion 58-120, Idaho Code, and any amounts recovered shall be paid to the state
 11 treasurer for deposit to the forest protection fund. Civil liability pro-
 12 vided for herein shall be exclusive of and in addition to any criminal penal-
 13 ties otherwise provided.

14 (2) (a) Notwithstanding any other provision of law, in a civil action
 15 against any person, legal entity, state, or political subdivision for
 16 forest or range fire caused by a negligent or unintentional act, which
 17 act was not willful or intentional under section 6-202, Idaho Code, the
 18 real and personal property damage is limited to:

19 ~~(a)~~ (i) The reasonable costs for controlling or extinguishing the
 20 forest or range fire;

21 ~~(b)~~ (ii) Economic damages; and

22 ~~(c)~~ (iii) Either ~~(i)~~ the diminution of fair market value of the
 23 real and personal property resulting from the fire, or ~~(ii)~~ the ac-
 24 tual and tangible restoration costs associated with bringing the
 25 damaged real and personal property back to its pre-injured state
 26 to the extent that such actual and tangible restoration costs are
 27 reasonable and practical.

28 (b) As used in this subsection, "economic damages" means objectively
 29 verifiable monetary loss including, but not limited to, out-of-pocket
 30 expenses, loss of earnings, loss of use of property, or loss of business
 31 or employment opportunities.

32 (c) As further used in this subsection, "fair market value" means the
 33 amount a willing buyer would pay a willing seller in an arms-length
 34 transaction when both parties are fully informed about all of the advan-
 35 tages and disadvantages of the property and neither is acting under any
 36 compulsion to buy or sell, as determined by a state certified appraiser,
 37 who is qualified to appraise the property.

38 (d) Claims against the state or a political subdivision shall remain
 39 subject to the requirements of chapter 9, title 6, Idaho Code, and dam-
 40 ages against the state or a political subdivision shall be the amount
 41 set forth in chapter 9, title 6, Idaho Code, as limited in this subsec-
 42 tion.

43 (3) Notwithstanding any other provision of law, civil actions brought
 44 pursuant to this section shall be barred by a statute of limitations after
 45 ten (10) years.

46 SECTION 2. That Section 38-113, Idaho Code, be, and the same is hereby
 47 amended to read as follows:

48 38-113. PURCHASER OF FOREST PRODUCTS RESPONSIBLE FOR PROTECTION --
 49 LIENS. When the owner of forest land ~~shall have~~ has sold timber and/or other

1 forest products or potential forest products ~~thereon~~ on such land to an-
 2 other, while retaining ownership of the land, the owner of the timber and/or
 3 other forest products or potential forest products shall be responsible for
 4 providing the protection required by section 38-111, Idaho Code, for that
 5 portion of the land covered by his uncut timber and/or other forest products
 6 or potential forest products and for the area he has cut over during the year
 7 up to the end of the closed season, and for any areas he has cut over without
 8 complying with the forest fire and slash disposal laws of the state, ~~and if~~
 9 ~~he~~. If the owner fails, neglects, or refuses to provide the protection re-
 10 quired by section 38-111, Idaho Code, the director of the department of lands
 11 shall provide such patrol and protection at the cost per acre to said owner at
 12 the rates therein established. Any amounts due and unpaid for this purpose
 13 shall be a lien upon the remaining standing timber and/or other forest prod-
 14 ucts or potential forest products and upon the timber and/or other forest
 15 products theretofore cut and/or removed or remaining on the ground and may
 16 be collected through extension upon the tax rolls covering such property as
 17 in section 38-112, Idaho Code, provided for collection of similar liens upon
 18 forest land; provided, that if the director of the department of lands shall
 19 deem such property to be inadequate security, the lien, unless promptly paid
 20 on demand of the director of the department of lands, may be by him perfected
 21 and enforced as loggers' liens are perfected and enforced, or such amounts,
 22 together with any expenses rendered necessary, may be recoverable from the
 23 offender by a civil action for debt prosecuted ~~in the name of the state of~~
 24 ~~Idaho~~ pursuant to section 58-120, Idaho Code. Any recovery shall be paid to
 25 the state treasurer for deposit in the forest protection fund.

26 SECTION 3. That Section 38-118, Idaho Code, be, and the same is hereby
 27 amended to read as follows:

28 38-118. DUTY OF RAILROADS -- PENALTIES. (1) During the closed season
 29 everyone operating a common carrier railroad shall keep all right of way,
 30 station grounds and other operating property in, contiguous, or adjacent
 31 to forest or range lands clear and free from all combustible and flammable
 32 material, matter or substances, except freight, express and mail supplies,
 33 structures, equipment and material necessary, usual or convenient for the
 34 construction, maintenance and/or operation of such railroad.

35 (2) During the said closed season, no person operating or maintaining
 36 such a railroad shall permit any of his or its employees to leave a deposit of
 37 fire, live coals, or hot ashes in the immediate vicinity of forest or range
 38 lands or of other lands liable to be overrun by fire.

39 (3) All clearing by burning under the provisions of the section shall be
 40 in accordance with the provisions of this act applicable to the season during
 41 which said burning is done.

42 (4) Refusal or neglect to comply with the provisions of this section
 43 shall be deemed a petty misdemeanor for each offense; provided, that the di-
 44 rector of the department of lands, with the consent of the board, may suspend
 45 the restrictions of this section when and where he deems safety so permits.
 46 It is further provided, that in the absence of such suspension, and in case
 47 of refusal or neglect by the person at fault, after proper notice, to take
 48 the precautions against fire required by public safety and the provisions of
 49 this act, the director of the department of lands, or district fire warden,

1 acting with his consent, may have the work done to the extent that he deems
 2 requisite to public safety, and the costs thereof and the expense of any fire
 3 patrol rendered necessary by the offender's neglect, plus a penalty of ten
 4 per cent (10%) shall be recoverable from the offender by civil action, pros-
 5 ecuted ~~in the name of the state of Idaho~~ pursuant to section 58-120, Idaho
 6 Code. Any recovery shall be paid to the state treasurer for deposit in the
 7 forest protection fund.

8 SECTION 4. That Section 38-123, Idaho Code, be, and the same is hereby
 9 amended to read as follows:

10 38-123. DISPOSAL OF SLASH -- INJUNCTION AGAINST FURTHER CUTTING --
 11 DISPOSAL AT EXPENSE OF OWNER -- LIEN AND ENFORCEMENT -- ORDERS. (1) In the
 12 event one responsible therefor shall fail, refuse, or neglect to properly
 13 dispose of slash in accordance with the requirements of section 38-122,
 14 Idaho Code, and such person responsible therefor is engaged or is about to
 15 engage, either for himself or for another, in cutting timber or other forest
 16 products, and thereby creating a fire hazard anywhere within the state, he
 17 may be enjoined from cutting such timber or other forest products and thereby
 18 creating a fire hazard until he shall have complied with the provisions of
 19 section 38-122, Idaho Code. Such injunction proceedings may be instituted
 20 by the director of the department of lands as plaintiff pursuant to section
 21 58-120, Idaho Code, and the court may in its discretion grant a temporary in-
 22 junction. In any such proceedings no bond shall be required of the plaintiff
 23 and such a proceeding shall be handled in any court by the judge thereof with
 24 expedition.

25 (2) If one responsible therefor has for any reason failed to comply with
 26 section 38-122, Idaho Code, and has without such compliance cut timber or
 27 other forest products, and shall fail, refuse, or neglect to properly dis-
 28 pose of slash for a period of thirty (30) days after being notified so to do
 29 by the director of the department of lands or the fire warden of the forest
 30 protective district within which such slash has accumulated, the director of
 31 the department of lands, or the fire warden, may, if he deems it advisable,
 32 complete, direct, or authorize the disposal of such slash at the expense of
 33 the owner of the timber or other forest products cut or produced from the land
 34 upon which such fire hazard remains undisposed of as aforesaid.

35 (3) The cost and expense of such disposal, plus twenty per cent (20%) of
 36 the cost and expense of such disposal as a penalty, shall constitute a prior
 37 lien upon the timber and/or other forest products so cut or produced from
 38 such land. If payment of such cost and penalty ~~be is~~ not made within ten (10)
 39 days after demand in writing, the director of the department of lands shall
 40 file for record with the county recorder of the county in which such timber or
 41 other forest products were cut, or, if the same have been removed to another
 42 county, then in such county, a notice of lien upon any and all forest products
 43 cut from the area of slash undisposed of as aforesaid, and such lien shall
 44 also attach to all identifiable processed products thereof, and the perfec-
 45 tion of such lien rights shall as nearly as practicable be in conformity with
 46 the provisions of section 45-407, Idaho Code, so far as the same is applica-
 47 ble, and duly verified as therein provided. Any claims of lien recorded as
 48 herein provided shall be released in writing by the director of the depart-
 49 ment of lands upon payment of the cost and penalty herein provided. After

1 the filing of notice of lien, any purchaser or purchasers of any of such for-
 2 est products who have disposed of the same or who shall have so mingled such
 3 forest products or the processed products thereof with other property as to
 4 prevent identification of such forest products, and thereby prevent the sale
 5 of any such products in such foreclosure proceedings, shall be liable for
 6 the full amount of the judgment recovered, provided such purchaser is made a
 7 party defendant in the suit for the foreclosure of lien. The proceedings for
 8 the enforcement of said lien shall conform as nearly as may be to the proceed-
 9 ings provided by law for the enforcement of loggers' lien, or the amount of
 10 such cost and penalty may be recovered by a civil action for debt, prosecuted
 11 ~~in the name of the state of Idaho~~ pursuant to section 58-120, Idaho Code, and
 12 payable to the state treasurer for deposit in the forest protection fund.

13 (4) The director of the department of lands shall not file for record any
 14 lien against the property of any person who has been issued a certificate of
 15 clearance in accordance with section 38-122, Idaho Code, covering such prop-
 16 erty.

17 (5) All orders and directions issued by the director of the department
 18 of lands, or any fire warden, as required or authorized by this section and
 19 section 38-122, Idaho Code, shall be in writing and made in triplicate, the
 20 original of which shall be sent by registered mail or delivered by personal
 21 service to the person to receive such order, permits or directions; one (1)
 22 copy shall be filed in the office of the director of the department of lands;
 23 and one (1) copy shall be filed in the district warden's file.

24 SECTION 5. That Section 38-128, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 38-128. DUTIES OF PROSECUTING ATTORNEYS AND ~~ATTORNEY GENERAL~~ GENERAL
 27 COUNSEL. (1) At the discretion of the director of the department of lands, it
 28 shall be the duty of ~~the attorney general or the prosecuting attorney of the~~
 29 ~~county within which such action lies,~~ general counsel for the department of
 30 lands, pursuant to section 58-120, Idaho Code, to prepare, upon information
 31 furnished by the director of the department of lands or the fire warden of any
 32 forest protective district, and foreclose all liens, ~~other than those pro-~~
 33 ~~vided for in sections 38-111, 38-112 and 38-113, Idaho Code,~~ and to prosecute
 34 ~~in the name of the state of Idaho~~ all actions for the recovery of penalties,
 35 ~~and costs,~~ and expenses incurred by the director of the department of lands,
 36 his deputy, ~~or the district's fire warden of the district~~ in carrying out the
 37 provisions of this chapter. For the purposes of this section, venue shall be
 38 determined subject to the terms of applicable Idaho law at the time of the in-
 39 cident. Civil actions against nonresidents of the state shall be prosecuted
 40 ~~by the attorney general~~ pursuant to section 58-120, Idaho Code.

41 (2) Whenever any arrest ~~shall have~~ has been made for the violation of
 42 any provisions of this chapter, or whenever any evidence, which shows with
 43 reasonable certainty any such violation, ~~shall have~~ has been lodged with
 44 him, the prosecuting attorney of the county in which the criminal act was
 45 committed ~~must~~ shall prosecute the offender with all diligence and energy.

46 SECTION 6. That Section 38-808, Idaho Code, be, and the same is hereby
 47 amended to read as follows:

1 38-808. RECORDING LOG BRANDS -- PENALTY. (1) Definitions:

2 (a) "Person" includes the plural and all corporations, foreign and do-
3 mestic, copartnerships, firms and associations of persons.

4 (b) ~~"Forest products."~~ For the purposes of this section only, "forest
5 products" means all products derived from trees including, but not lim-
6 ited to, saw logs, veneer logs, poles, cedar products, pulp logs, fence
7 posts, and every form into which a fallen tree may be cut before it is
8 manufactured into lumber or run through a processing mill or cut into
9 cordwood, stove wood or hewn ties.

10 (c) "Log brand" means a unique symbol or mark placed on or in forest
11 products for the purpose of identifying ownership.

12 (2) Any owner of forest products in the state of Idaho may use thereon
13 any log brand, which may be applied as a stamped symbol, log brand or af-
14 fixed tag, not currently registered by any other person in the state; but
15 before any such log brand shall be used, it shall be the duty of such owner
16 intending to use the same to cause a diagram, and a full and complete writ-
17 ten description of his log brand, signed by him, to be submitted on "Reg-
18 istration of Log Brands" forms to the office of the Idaho board of scaling
19 practices, who shall record the same upon receipt of a payment of twenty-
20 five dollars (\$25.00), provided the log brand is different from any other log
21 brand currently registered in that office. It shall be the duty of the person
22 in charge of the Idaho board of scaling practices office to keep a record of
23 all registered log brands, which record shall at all reasonable times be open
24 to public inspection.

25 (3) All applications for log brands and/or renewals shall be submit-
26 ted to and approved by the Idaho board of scaling practices prior to use.
27 Such application shall be made on duplicate log brand registration forms and
28 shall include a diagram or an impression of the log brand stamped on the form,
29 a written description of the log brand and be signed by the person or the
30 agent of the person. The Idaho board of scaling practices may refuse to ap-
31 prove any log brand which is identical to or closely resembles a currently
32 registered log brand. If approval is denied, the applicant will select an-
33 other log brand. No person shall brand any prize log.

34 (4) ~~The expiration date for all log brands registered prior to January~~
35 ~~1, 1981, shall be February 28, 1994; the expiration date for all log brands~~
36 ~~registered from January 1, 1981, through December 31, 1985, shall be Febru-~~
37 ~~ary 28, 1995; the expiration date for all log brands registered from January~~
38 ~~1, 1986 through December 31, 1989, shall be February 28, 1996; the expiration~~
39 ~~date for all log brands registered from January 1, 1990, through December~~
40 ~~31, 1992, shall be February 28, 1997.~~ Beginning January 1, 1993, renewals or
41 newly approved registrations shall expire on February 28, five (5) years af-
42 ter the year of registration or renewal. Notification of expiration will be
43 sent during the month of September of the year preceding the expiration date.
44 A renewal fee of twenty-five dollars (\$25.00) shall be charged each time a
45 log brand is renewed by the same person.

46 (5) To assign ownership of a currently registered log brand, the cur-
47 rent registered owner of the log brand shall file with the Idaho board of
48 scaling practices a signed and duly notarized instrument on forms provided
49 by the board. Such forms shall specify the effective date of transfer, the
50 assignee and the log brand to be assigned. A fee of twenty-five dollars

1 (\$25.00) shall be charged for each transfer. The transferred log brand will
 2 be issued a new registration number and shall expire February 28, five (5)
 3 years after the year of the transfer.

4 (6) Any failure to renew a log brand as required by law shall be deemed
 5 an abandonment of the same. Abandoned or canceled log brands shall not be
 6 reissued for a period of one (1) year unless the Idaho board of scaling prac-
 7 tices so authorizes for cause. Any other person may be at liberty to adopt or
 8 use the abandoned log brand; but the other person shall not claim or use it
 9 until after it has been registered in the other person's own name as provided
 10 by this section.

11 ~~(6)~~ (7) Failure to comply with the provisions of this section shall be
 12 deemed a violation of the log brand law. Upon request of the Idaho board
 13 of scaling practices or its chairperson, it shall be the duty of ~~the attor-~~
 14 ~~ney general~~ general counsel for the department of lands, pursuant to section
 15 58-120, Idaho Code, to institute and prosecute civil enforcement actions.
 16 In addition, when deemed by the board to be necessary, the board may retain
 17 private counsel or the office of the attorney general to institute and pros-
 18 ecute civil enforcement actions. Any person who has been determined to have
 19 violated the provisions of this chapter shall be liable for any expense, in-
 20 cluding reasonable attorney's fees, incurred by the state in enforcing the
 21 provisions of this chapter. Any violation of this section shall be deemed a
 22 misdemeanor and any person, upon conviction, shall be sentenced to pay a fine
 23 of not less than one hundred dollars (\$100) nor more than five hundred dol-
 24 lars (\$500).

25 SECTION 7. That Section 38-1220A, Idaho Code, be, and the same is hereby
 26 amended to read as follows:

27 38-1220A. INSPECTION -- INVESTIGATION -- VIOLATIONS -- ENFORCEMENT --
 28 PENALTY. (a) The chairman of the Idaho board of scaling practices shall cause
 29 investigations to be made upon the request of the board or upon receipt of
 30 information concerning an alleged violation of this chapter or of any rule,
 31 order, or license issued or promulgated thereunder, and may cause to be made
 32 such other investigations as the chairman shall deem advisable.

33 (b) The chairman or the chairman's designee shall have the authority
 34 to:

35 (1) Conduct a program of continuing surveillance and of regular or pe-
 36 riodic inspection of log scaling sites.

37 (2) Enter at all reasonable times upon any private or public property
 38 for the purpose of inspecting or investigating to ascertain possible
 39 violations of this chapter or of any rule, order, or license issued or
 40 promulgated thereunder.

41 (c) Whenever the chairman determines that any person or legal entity is
 42 in violation of any provisions of this chapter or any rule, order, or license
 43 issued or promulgated pursuant to this chapter, the chairman may initiate
 44 a civil enforcement action ~~through the attorney general and/or a criminal~~
 45 ~~action through the prosecuting attorney as provided in~~ pursuant to section
 46 38-1221, Idaho Code. Civil enforcement actions shall be commenced and pros-
 47 ecuted in the district court in and for the county in which the alleged vio-
 48 lation occurred, and may be brought against any person or legal entity who is
 49 alleged to have violated any provisions of this chapter or any rule, order,

1 or license which has become effective pursuant to this chapter. Such action
 2 may be brought to compel compliance with any provisions of this chapter or
 3 any rule, order, or license issued or promulgated hereunder and for any re-
 4 lief or remedies authorized in this chapter. Except as provided in section
 5 38-1218, Idaho Code, the chairman shall not be required to initiate or prose-
 6 cute an administrative action before initiating a civil enforcement action.

7 (d) Any person or legal entity determined in a civil enforcement action
 8 to have violated any provision of this chapter or any rule, order, or license
 9 issued or promulgated pursuant to this chapter shall be liable for a civil
 10 penalty not to exceed five thousand dollars (\$5,000) per violation or five
 11 hundred dollars (\$500) for each day of a continuing violation, whichever is
 12 greater. The method of recovery of said penalty shall be by a civil enforce-
 13 ment action in the district court in and for the county where the violation
 14 occurred. All civil penalties collected under this chapter shall be paid
 15 into the state scaling account.

16 (e) In addition to such civil penalties, any person or legal entity
 17 who has been determined to have violated the provisions of this chapter or
 18 any rule, order, or license issued or promulgated pursuant to this chapter,
 19 shall be liable for any expense, including reasonable attorney's fees, in-
 20 curred by the state in enforcing this chapter.

21 (f) No action taken pursuant to the provisions of this chapter shall re-
 22 lieve any person or legal entity from any civil action and damages that may
 23 exist for damage resulting from any violation of this chapter or any rule,
 24 order, or license issued or promulgated thereunder.

25 SECTION 8. That Section 38-1221, Idaho Code, be, and the same is hereby
 26 amended to read as follows:

27 38-1221. COMMENCEMENT OF CIVIL ENFORCEMENT ACTIONS -- CRIMINAL AC-
 28 TIONS AND PENALTIES AUTHORIZED -- ~~DUTIES OF ATTORNEY GENERAL AND PROSECUTING~~
 29 ~~ATTORNEYS~~. (a) Upon request of the board or the chairman, it shall be the
 30 duty of ~~the attorney general~~ general counsel for the department of lands,
 31 pursuant to section 58-120, Idaho Code, to institute and prosecute civil en-
 32 forcement actions as provided in section 38-1220A, Idaho Code. In addition,
 33 when deemed by the chairman to be necessary, the chairman may retain private
 34 counsel or the office of the attorney general to institute and prosecute
 35 civil enforcement actions as provided in section 38-1220A, Idaho Code.

36 (b) In addition to the above, any person who shall practice, or offer to
 37 practice log scaling in this state without being licensed, having a tempo-
 38 rary permit or being an apprentice, in accordance with the provisions of this
 39 ~~act~~ chapter or any rule, regulation, order, or license issued or promulgated
 40 thereunder, or any person who shall attempt to use an expired or revoked cer-
 41 tificate of registration or practice at any time during a period the board
 42 has suspended or revoked his certificate of registration, or any person who
 43 shall violate any of the provisions of this ~~act~~ chapter or any rule, regu-
 44 lation, order, or license issued or promulgated thereunder, shall be guilty
 45 of a misdemeanor, and shall, upon conviction, be sentenced to pay a fine of
 46 not less than one hundred dollars (\$100) nor more than five hundred dollars
 47 (\$500). A prosecution for a misdemeanor under this chapter must be commenced
 48 by the filing of the complaint or the finding of an indictment within two (2)
 49 years after its commission.

1 ~~(c) The attorney general of this state or any assistant designated by~~
 2 ~~him~~ General counsel for the department of lands shall act as legal advisor of
 3 the board, and all criminal.

4 (d) Criminal actions for violations of the provisions of this ~~aet~~
 5 chapter shall be prosecuted by the prosecuting attorney of the county or
 6 counties in which the violations of the ~~aet~~ chapter may be committed.

7 SECTION 9. That Section 38-1307, Idaho Code, be, and the same is hereby
 8 amended to read as follows:

9 38-1307. NOTICE OF VIOLATION -- CEASE AND REPAIR ORDER -- STOP WORK OR-
 10 DER -- ENFORCEMENT PROCEDURES -- REMEDIES OF THE OPERATOR. (1) When the de-
 11 partment determines that an operator violated any provision of this chapter
 12 or rule, it shall issue a notice of violation. The notice shall specify the
 13 nature of the violation charged and any damage or unsatisfactory condition
 14 resulting from the violation.

15 (2) When a notice of violation is issued under this section, the depart-
 16 ment:

17 (a) May issue an order directing the operator immediately to cease
 18 further violation and to commence and continue repairing the damage or
 19 correcting the unsatisfactory condition, hereinafter referred to as a
 20 "cease and repair order".

21 (b) If after two (2) working days from the delivery of a cease and repair
 22 order, the operator fails to cease further violation and to commence and
 23 continue repairing the damage or to enter into an agreement to repair
 24 pursuant to subsection (2) (d) of this section, in compliance with the
 25 order, the department may issue and serve an order directing the opera-
 26 tor to cease all forest practices within the contract area, hereinafter
 27 referred to as a "stop work order".

28 (c) The department may initiate the remedies set forth in subsection
 29 (2) (e) of this section:

30 1. At any time after delivery of the stop work order, if the opera-
 31 tor fails to immediately stop work in the contract area;

32 2. After five (5) days from the delivery of the stop work order, if
 33 the operator fails to comply fully with the cease and repair order;

34 or

35 3. At any time after delivery of a notice of violation, if serious
 36 or irreparable damage will occur to land as a result of said viola-
 37 tion, notwithstanding any other provisions of this chapter.

38 (d) An operator who has been served with a cease and repair order and
 39 who has completed his work in and removed all of his equipment from the
 40 contract area, or who cannot enter upon the land to repair the damage
 41 because of heavy snow, flooding, or similar serious condition upon the
 42 land, may comply with the order by entering into an agreement with the
 43 department to commence and thereafter continue to repair the damage
 44 within sixty (60) days after repair is practicable following heavy
 45 snow, flooding, or similar serious condition upon the land.

46 (e) The department shall initiate the following remedies in accordance
 47 with subsection (2) (c) of this section:

48 1. The department shall estimate the costs of repair of the damage
 49 and reasonable administrative and legal fees to be expended in ob-

1 taining a judgment against the operator, and shall notify the op-
 2 erator, timber owner, and landowner in writing of the amount of the
 3 estimate.

4 2. The county attorney for the county where the contract area
 5 is situated or ~~the attorney general~~ general counsel for the de-
 6 partment of lands, pursuant to section 58-120, Idaho Code, shall
 7 file an action to enjoin the operator's violations and to recover
 8 the costs of repair and administrative and legal fees and/or to
 9 foreclose a lien against the operator as set forth in subsection
 10 (2) (e)3 of this section. Legal fees recovered in such an ac-
 11 tion shall accrue to the ~~county attorney and the attorney general~~
 12 attorneys according to the proportionate time in which each has
 13 expended in obtaining the judgment.

14 3. A priority lien shall attach to the real and personal property
 15 of the operator upon delivery to the operator of a stop work order
 16 for the amount not to exceed the estimated costs of repair and rea-
 17 sonable administrative and legal fees to be expended in foreclos-
 18 ing the lien. A written notice of the lien, containing a state-
 19 ment of the estimated costs of repair and reasonable administra-
 20 tive and legal fees, and the names of the parties against whom the
 21 lien attached, shall be certified under oath by the department and
 22 filed in the office of the county clerk and recorder of the county
 23 or counties where the real and personal property of the operator
 24 is located and where considered necessary to recover the estimated
 25 expenditures. This lien shall be perfected upon filing. This lien
 26 shall cease unless legal action is instituted within one (1) year
 27 from the date of filing of the notice of the lien.

28 4. If the operator is a nonresident who does not own real prop-
 29 erty in Idaho, the department after hearing, may declare the oper-
 30 ator's bond forfeited or commence legal action against the bond to
 31 recover the costs of repair and reasonable administrative and le-
 32 gal fees.

33 (3) An operator dissatisfied with a stop work order shall have thirty
 34 (30) days after service thereof to challenge the order, without administra-
 35 tive review thereof, in a court of proper jurisdiction in the county where
 36 the alleged damaged land is situated. In such an action the operator shall
 37 bear the burden of proving that the cease and repair order and the stop work
 38 order are without merit or basis; or shall have ten (10) days after service
 39 thereof to request a hearing before the board, to challenge the merit or ba-
 40 sis of either or both orders. In such an action, the operator shall bear the
 41 burden of proving that the cease and repair order and the stop work order are
 42 without merit or basis. If the board affirms the order(s), the operator may
 43 within thirty (30) days after the board's decision, appeal the decision to
 44 the district court for the county where the alleged damaged land is situated.
 45 The action in the district court shall be limited to appellate review.

46 (4) If a nonresident operator who does not own real property in the
 47 state of Idaho performs forest practices without first submitting a bond in
 48 compliance with section 38-1306A, Idaho Code, or if an operator performs
 49 forest practices without first submitting notice to the department in com-
 50 pliance with section 38-1306, Idaho Code, the department may immediately

1 commence legal action to enjoin the operator by temporary restraining order
 2 or preliminary injunction, and evoke through the county attorney the misde-
 3 meanor penalties of section 38-1310, Idaho Code. The testimony under oath
 4 of a department employee or forester that a nonresident operator who does
 5 not own property in Idaho is performing forest practices without a bond or
 6 that an operator is performing forest practices without having first given
 7 notice to the department shall constitute prima facie evidence upon which,
 8 if un rebutted, a district court shall issue a temporary restraining order or
 9 a preliminary injunction against the operator, to cease all forest practices
 10 in the contract area until this act has been fully complied with.

11 (5) Service of a notice or order under this section shall be made upon
 12 the operator or his agent, representative or contractor, by personal deliv-
 13 ery or certified mail.

14 SECTION 10. That Section 47-314, Idaho Code, be, and the same is hereby
 15 amended to read as follows:

16 47-314. OIL AND GAS CONSERVATION COMMISSION CREATED -- POWERS -- LIMIT
 17 ON LOCAL RESTRICTIONS -- ~~ATTORNEY GENERAL~~ GENERAL COUNSEL. (1) There is
 18 hereby created an oil and gas conservation commission of the state of Idaho
 19 within the department of lands. The commission shall consist of a county
 20 commissioner as described in this section and four (4) members appointed by
 21 the governor with the advice and consent of the senate.

22 (a) The county commissioner shall be from a county where oil and gas
 23 are being produced or have been produced within the last ten (10) years
 24 and shall be elected by a majority of the county commissioners from such
 25 producing counties. The county commissioner shall serve a four (4) year
 26 term. A vacancy shall be filled by election for the unexpired term in
 27 the same manner provided for election to a full term.

28 (b) The governor shall appoint four (4) members who shall serve at the
 29 pleasure of the governor. One (1) member shall be knowledgeable in oil
 30 and gas matters and shall have at least eight (8) years of experience
 31 in the oil and gas industry. One (1) member shall be a mineral inter-
 32 est owner without an oil and gas lease in a county where oil and gas have
 33 been produced. One (1) member shall be a resident of Idaho knowledge-
 34 able in land use matters and shall have at least five (5) years experi-
 35 ence in land use matters. The term of office of each appointed member of
 36 the commission shall be four (4) years. A vacancy shall be filled by ap-
 37 pointment for the unexpired term in the same manner provided for an ap-
 38 pointment to the full term.

39 (2) The commission shall annually elect a chairman and a vice chairman
 40 from its membership. Such officers shall hold their respective offices un-
 41 til their successors are elected. If a vacancy occurs in either office, the
 42 commission shall elect a member to fill such office for the remainder of the
 43 term.

44 (3) The commission shall meet at least annually and thereafter on dates
 45 set by the commission. A majority of the members shall constitute a quorum.

46 (4) The members of the commission appointed by the governor or selected
 47 by the county commissioners shall be compensated as provided in section
 48 59-509(n), Idaho Code.

1 (5) The oil and gas administrator of the department of lands shall be
2 the secretary for the commission.

3 (6) The department of lands shall have the power to exercise, under the
4 general control and supervision of the commission, all of the rights, pow-
5 ers, and duties vested by law in the commission, except those provided in
6 sections 47-328 and 47-329(3), Idaho Code.

7 (7) The commission shall have and is hereby given jurisdiction and au-
8 thority over all persons and property, public and private, necessary to en-
9 force the provisions of this act and shall have power and authority to make
10 and enforce rules, regulations, and orders and to do whatever may reasonably
11 be necessary to carry out the provisions of this act. Any delegation of au-
12 thority to any other state officer, board, or commission to administer any
13 and all other laws of this state relating to the conservation of oil and gas
14 is hereby rescinded and withdrawn and such authority is hereby unqualifiedly
15 conferred upon the commission as herein provided. The commission shall fol-
16 low procedures on applications as provided in section 47-328, Idaho Code,
17 except as provided in sections 47-316(1) (a) and 47-329(3), Idaho Code.

18 (8) It is the intent of the legislature to occupy the field of the regu-
19 lation of oil and gas exploration and production with the limited exception
20 of the exercise of planning and zoning authority granted cities and counties
21 pursuant to chapter 65, title 67, Idaho Code.

22 (9) To implement the purpose of the oil and gas conservation act, and
23 to advance the public interest in the orderly development of the state's oil
24 and gas resources, while at the same time recognizing the responsibility of
25 local governments to protect the public health, safety, and welfare, it is
26 herein provided that:

27 (a) The commission will notify the respective city or county with ju-
28 risdiction upon receipt of an application and will remit, electroni-
29 cally, a copy of all application materials.

30 (b) No ordinance, resolution, requirement, or standard of a city,
31 county, or political subdivision, except a state agency with author-
32 ity, shall actually or operationally prohibit the extraction of oil and
33 gas; provided however, that extraction may be subject to reasonable
34 local ordinance provisions, not repugnant to law, that protect public
35 health, public safety, and public order or that prevent harm to public
36 infrastructure or degradation of the value, use, and enjoyment of pri-
37 vate property. Any ordinance regulating extraction enacted pursuant
38 to chapter 65, title 67, Idaho Code, shall provide for administrative
39 permitting under conditions established by ordinance, not to exceed
40 twenty-one (21) days unless extended by agreement of the parties or upon
41 good cause shown.

42 (c) No ordinance, resolution, requirement, or standard of a city,
43 county, or political subdivision, except a state agency with authority,
44 shall actually or operationally prohibit construction or operation
45 of facilities and infrastructure needed for the post-extraction pro-
46 cessing and transport of gas and oil. However, such facilities and
47 infrastructure shall be subject to local ordinances, regulations, and
48 permitting requirements, not repugnant to law, as provided in chapter
49 65, title 67, Idaho Code.

1 (10) The commission may sue and be sued in its administration of this act
 2 in any state or federal district court in the state of Idaho having jurisdic-
 3 tion of the parties or of the subject matter.

4 (11) The ~~attorney general~~ general counsel for the department of lands,
 5 pursuant to section 58-120, Idaho Code, shall act as the legal advisor of
 6 the commission and represent the commission in all court proceedings, in
 7 all proceedings before the commission, and in any proceeding to which the
 8 commission may be a party before any department of the federal government.
 9 The commission may retain additional counsel to assist ~~the attorney general~~
 10 general counsel and, for such purpose, may employ any funds available under
 11 this act.

12 SECTION 11. That Section 47-718, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 47-718. VIOLATIONS -- REMEDIES -- PENALTIES. (1) In addition to any
 15 other penalties and remedies of this chapter and at law, any person, firm,
 16 or corporation who violates any provisions of this chapter or rules adopted
 17 pursuant thereto, or who fails to perform the duties imposed thereby, or who
 18 violates any determination or order thereunder or any violation of a lease
 19 granted under this chapter, the director of the department of lands may:

20 (a) ~~Proceed by legal action in the name of the state of Idaho, pursuant~~
 21 to section 58-120, Idaho Code, to enjoin the violation, by temporary re-
 22 straining order, preliminary injunction and/or permanent injunction.

23 (i) The court, or a judge thereof at chambers, if satisfied from a
 24 verified complaint or by affidavit that the alleged violation has
 25 been or is being committed, may issue a temporary restraining or-
 26 der, without notice or bond, enjoining the defendant, his agents,
 27 employees, contractors and assigns from further violation, or
 28 from conducting exploration or mining on the state lands affected
 29 by the violation.

30 (ii) The verified complaint or affidavit that the alleged viola-
 31 tion has been or is being committed shall constitute prima facie
 32 evidence of great or irreparable injury and/or great waste suffi-
 33 cient to support the temporary restraining order.

34 (iii) The action shall thereafter proceed as in other cases for
 35 injunctions. If at the trial the violation is established, the
 36 court shall enter a decree perpetually enjoining said defendant,
 37 his agents, employees, contractors and assigns from thereafter
 38 committing said or similar violations.

39 (b) ~~Proceed by legal action in the name of the state of Idaho, pursuant~~
 40 to section 58-120, Idaho Code, to obtain an order requiring the opera-
 41 tor to promptly repair the damage and reclaim the state lands in accor-
 42 dance with the requirements of section 47-703A, Idaho Code, and rules
 43 adopted pursuant thereto. If thereafter the court finds that the opera-
 44 tor is not promptly complying with such order, the court shall order the
 45 operator to immediately pay an amount determined by the department to
 46 be the anticipated cost of reasonable repair and reclamation in accor-
 47 dance with section 47-703A(4), Idaho Code, and rules adopted pursuant
 48 thereto.

(c) Proceed to forfeit the operator's bond required by section 47-703A(1), 47-704(6) or 47-708, Idaho Code. The board may cause to have issued and served upon the operator alleged to be committing such violation, a formal complaint which includes a statement of the manner in and the extent to which said operator is alleged to be violating the provisions of this act. Such complaint may be served by certified mail, and return receipt signed by the lessee, an officer of a corporate lessee, or the designated agent of the lessee shall constitute service. The lessee shall answer the complaint and request a hearing before a designated hearing officer within thirty (30) days from receipt of the complaint if matters asserted in the complaint are disputed. If the lessee fails to answer the complaint and request a hearing, the matters asserted in the complaint shall be deemed admitted by the lessee, and the board may proceed to forfeit the bond in the amount necessary to reclaim affected lands and pay for any outstanding royalties and related administrative costs. The director of the department of lands is empowered to issue subpoenas. The hearing shall be conducted in accordance with chapter 52, title 67, Idaho Code. The hearing officer shall enter an order in accordance with chapter 52, title 67, Idaho Code. Appeal to a district court shall be in accordance with chapter 52, title 67, Idaho Code.

(d) Cancel the lease in accordance with section 47-707, Idaho Code.

(2) In addition to the injunctive remedies of subsection (1) (a) of this section, the director may:

(a) ~~Proceed in the first instance by legal action in the name of the state of Idaho, pursuant to section 58-120, Idaho Code, to recover from an operator who, without bond, has conducted or is conducting exploration with heavy equipment on state lands, including lands between the ordinary high watermarks of navigable rivers, the cost of repairing damage to and reclaiming the affected state lands in accordance with section 47-703A(4), Idaho Code, and rules adopted pursuant thereto; or if the bond on file with the department of lands is not sufficient to adequately reclaim the affected state lands, to recover the cost in excess of the bond to reclaim the affected state lands in accordance with section 47-703A(4), Idaho Code, and rules adopted pursuant thereto.~~

(b) ~~Proceed by legal action in the name of the state of Idaho, pursuant to section 58-120, Idaho Code, to recover from an operator who has removed minerals in commercial quantities from state lands, including lands between the ordinary high watermarks of navigable rivers, in violation of the provisions of section 47-717, Idaho Code, damages in the amount of the prevailing royalty rate set by the board of land commissioners for the particular mineral removed plus interest from the date of removal at the legal rate of interest due on money judgments set by the Idaho state treasurer pursuant to section 28-22-104, Idaho Code, from the date of removal to judgment.~~

(3) In addition to any other penalties or injunctive remedies of this chapter, any person, firm, or corporation who violates any of the provisions of this chapter or rules adopted pursuant thereto, or who fails to perform the duties imposed by these provisions, or who violates any determination or order promulgated pursuant to the provisions of this chapter, shall be li-

1 able to a civil penalty of not less than one hundred dollars (\$100) nor more
 2 than one thousand dollars (\$1,000) for each day during which any provision of
 3 this chapter, rule or order has been or is being violated. All sums recovered
 4 shall be credited to the general fund.

5 (4) An appeal from a final judgment of the district court shall be taken
 6 in the manner provided by law for appeals in civil cases.

7 SECTION 12. That Section 47-1317, Idaho Code, be, and the same is hereby
 8 amended to read as follows:

9 47-1317. APPLICATION, PERMIT, AND BOND REQUIRED. (a) Before any per-
 10 son may conduct a placer or dredge mining operation on lands or natural wa-
 11 tercourses in the state of Idaho, such person shall file with the director
 12 an application for a permit upon a form provided by the director, and shall
 13 pay an application fee of fifty dollars (\$50.00), for each ten (10) acres or
 14 fraction thereof above involved in such application, provided that no ap-
 15 plication fee shall exceed one thousand dollars (\$1,000). Application fees
 16 shall be deposited in the dredge and placer mining account.

17 (b) The permit to issue in any such case shall be in a form provided and
 18 approved by the board. No such permit shall be issued to any applicant until
 19 the applicant files with the director an initial bond in an amount necessary
 20 to pay the estimated reasonable costs of reclamation required under the per-
 21 mit for each acre of land to be disturbed during the first season of operation
 22 plus ten percent (10%). The amount of the bond shall not exceed one thou-
 23 sand eight hundred dollars (\$1,800) per acre of disturbed land. At the be-
 24 ginning of each calendar year or before operations begin, the operator shall
 25 notify the director of any increase or decrease in the acreage of disturbed
 26 lands which will result from planned placer mining activity within the next
 27 operating season. A correlated increase or decrease in the bond shall be re-
 28 quired by the director for a change in disturbed acreage. In the event of
 29 failure by the permittee to reclaim disturbed lands in the permit area, the
 30 cost charged to the permittee shall be reasonable costs of reclamation plus
 31 ten percent (10%); provided that, in no event shall any bond submitted pur-
 32 suant to this section exceed one thousand eight hundred dollars (\$1,800) for
 33 any given acre of disturbed land. The determination by the board of recla-
 34 mation costs shall constitute a final decision subject to judicial review
 35 as set forth in subsection (d) of section 47-1320, Idaho Code. The bond may
 36 be submitted in the form of a surety, cash, certificate of deposit, or other
 37 bond acceptable to the director, provided that any bond shall be in the ap-
 38 plicable amount set forth above.

39 (c) It shall be unlawful for any person to conduct placer or dredge min-
 40 ing operations in this state without first having obtained a permit and bond
 41 as herein provided. The board shall determine whether a permit application
 42 and bond submitted by an applicant satisfies the requirements of this ~~act~~
 43 chapter and regulations promulgated thereto. Upon such determination, the
 44 board shall notify the applicant in writing of approval or denial of the per-
 45 mit application and bond. Any notice of rejection shall state the reasons
 46 for such rejection. An applicant may submit an amended permit application
 47 and bond.

48 (d) It shall be the duty of the board in its administration of this ~~act~~
 49 chapter to cause periodic inspections to be made of the operations under such

permits to determine compliance with this law and to make rules and regulations with respect thereto and the cost and expense of making such inspections shall be borne by the permittee, which such costs and expenses shall constitute a lien upon equipment, personal property, or real property of the permittee and upon minerals produced from the permit area, and the failure to pay the amount thereof on demand by the board shall be cause for termination of the permit. All inspection fees shall be deposited in the dredge and placer mining account.

(e) The board may release an applicant from the requirement that the applicant submit a bond if the director determines that the applicant has insured faithful performance of the requirements of this ~~act~~ chapter and regulations promulgated thereto pertinent to land and watercourse restoration by submitting and having on file a current and valid bond with the United States government, which bond equals or exceeds the amount set forth above, provided that such release by the director shall not release an applicant from bonding under this ~~act~~ chapter, should the permittee fail to continuously maintain a valid bond with the United States government or from compliance with any other requirement of this ~~act~~ chapter or regulations promulgated thereto.

(f) Upon determination by the director that restoration has been satisfactorily completed on a portion of a permit area in accordance with the applicable approved permit and with subsection (a) of section 47-1314, Idaho Code, the board may reduce the bond amount to reflect the completed restoration.

(g) ~~That if~~ If any applicant for such dredge or other placer mining operations as contemplated by this ~~act~~ chapter be not the owner of the lands described in the application or any part thereof, the owner of such lands shall indorse his approval of the application, and no permit shall be issued in the absence of such approval by the owner of lands described in the application not owned by the applicant.

(h) No permit shall be issued proposing to alter or occupy the bed of a navigable stream or to dredge any stream or watercourse without ~~notification to the director first notifying~~ the department of water resources of the pending application. The department of water resources shall respond to said notification within twenty (20) days, and the response shall be included in any permit granted hereunder by a showing whether the permit constitutes a permit from the department of water resources or whether an additional permit from the department of water resources shall be required.

(i) No permit shall issue hereunder to dredge nor otherwise placer mine any lands owned by the state of Idaho, including the beds of navigable streams, and including the mineral reservations in lands sold by the state, unless a mineral lease shall be made of such terms and at such royalty to the state as its board of state land commissioners shall prescribe and determine.

(j) The Idaho state board of land commissioners shall have the power to deny any application for a permit on state land, stream or river beds, or on any unpatented mining claims, upon its determination that a dredge mining operation on the land proposed would not be in the public interest, giving consideration to economic factors, recreational use for such lands, fish and wildlife habitat, and other factors which in the judgment of the state land

1 board may be pertinent, and may deny an application upon notification by the
2 department of water resources that the grant of such permit would result in
3 permanent damage to a stream channel.

4 (k) Upon default, in the event that the amount of the bond is insuffi-
5 cient to reclaim the land in compliance with ~~the act~~ this chapter and the ap-
6 proved plan, ~~the attorney general is empowered to commence~~ legal action may
7 be commenced, pursuant to section 58-120, Idaho Code, against the operator,
8 in the name of the board, to recover the amount in excess of the bond neces-
9 sary to reclaim the land in compliance with ~~the act~~ this chapter and the ap-
10 proved plan.

11 SECTION 13. That Section 47-1324, Idaho Code, be, and the same is hereby
12 amended to read as follows:

13 47-1324. ENFORCEMENT AND PENALTIES FOR VIOLATION. (a) The board may
14 maintain an action ~~in the name of the state of Idaho~~ to enjoin any person from
15 operating or maintaining a placer or dredge mining operation without hold-
16 ing a valid permit or bond as provided in this ~~act~~ chapter or regulations
17 promulgated thereto. The court, or a judge thereof at chambers, if satis-
18 fied from a complaint or by affidavits that the alleged acts have been or
19 are being committed, may issue a temporary restraining order, without no-
20 tice or bond, enjoining the defendant, his agents and employees, from oper-
21 ating or maintaining such placer or dredge mining operation without obtain-
22 ing a permit and bond as provided in this ~~act~~ chapter or regulations promul-
23 gated thereto. No showing of injury shall be required other than that this
24 ~~act~~ chapter is being violated by the operation or maintenance of a placer or
25 dredge mining operation without the approved permit and bond. Upon a show-
26 ing of good cause therefor, the court may require the defendant to undertake
27 mitigation or restoration of the disturbed area in conformity with section
28 47-1314, Idaho Code, pending final disposition of the action. The action
29 shall proceed as in other cases for injunctions. If at the trial the oper-
30 ation and maintenance of a placer or dredge mining operation without a per-
31 mit or bond be established, and the court further finds that it is probable
32 that the defendant will continue therein or in similar violations, the court
33 shall enter a decree perpetually enjoining said defendant, his agents and
34 employees from thereafter committing said or similar actions in violation of
35 this ~~act~~ chapter.

36 (b) The board may maintain an action ~~in the name of the state of Idaho~~
37 to enjoin any person from operating or maintaining a placer or dredge mining
38 operation when, under an existing approved permit and bond, a permittee vi-
39 olates or exceeds the terms of the permit or violates a provision of this ~~act~~
40 chapter, and the bond, if forfeited, would not be sufficient to adequately
41 restore the land.

42 (c) In addition to the injunctive provisions above, the board may main-
43 tain a civil action against any person who violates any provision of this ~~act~~
44 chapter to collect civil damages in an amount sufficient to pay for all the
45 damages to the state caused by such violation, including but not limited to,
46 costs of restoration in accordance with section 47-1314, Idaho Code, where
47 a person is conducting placer or dredge mining without an approved permit or
48 bond.

(d) Notwithstanding any other provisions of this ~~act~~ chapter, any person who violates any of the provisions of this ~~act~~ chapter or regulations promulgated thereto, or who violates any determination or order promulgated pursuant to the provisions of this ~~act~~ chapter, shall be liable for a civil penalty of not less than five hundred dollars (\$500) nor more than two thousand five hundred dollars (\$2,500) for each day during which such violation continues. Such penalty shall be recoverable ~~in an action brought in the name of the state of Idaho by the attorney general~~ pursuant to section 58-120, Idaho Code. All sums recovered shall be placed in the state treasury and credited to the dredge and placer mining account, to be administered by the board for the restoration of lands and watercourses damaged by placer or dredge mining operations.

(e) No administrative action or decision by the director or board shall be required prior to enforcement of any of the above remedies, provided that no permit shall be terminated and no bond shall be forfeited without administrative action as provided under sections 47-1318 and 47-1319, Idaho Code. No administrative action or decision by the Idaho board of health and welfare shall be required prior to enforcement of any of the above remedies ~~by the state of Idaho~~ against any person violating section 47-1315, Idaho Code.

(f) Any person who wilfully or knowingly falsifies any records, plans, specifications, or other information required by the board or wilfully fails, neglects, or refuses to comply with any provisions of this ~~act~~ chapter shall be guilty of a misdemeanor punishable by a fine of not less than one thousand dollars (\$1,000) and not more than five thousand dollars (\$5,000) or imprisonment not to exceed one (1) year, or both.

(g) All civil actions provided for in this section shall be filed in the district court of this state for the county wherein the violation, or some part thereof, occurs, or in the district court for the county wherein the defendant resides or has a principal place of business, or in the district court for the county of Ada if the defendant resides out-of-state, or in the appropriate court of the United States where the rules and statutes governing such courts permit.

SECTION 14. That Section 47-1513, Idaho Code, be, and the same is hereby amended to read as follows:

47-1513. OPERATOR'S FAILURE TO COMPLY -- FORFEITURE OF FINANCIAL ASSURANCE -- PENALTIES -- RECLAMATION FUND -- CYANIDATION CLOSURE FUND. (a) Whenever the board determines that an operator has not complied with the provisions of this chapter, the board may notify the operator of such noncompliance and may, by private conference, conciliation, and persuasion, endeavor to remedy such violation. In the event of a violation referred to in subsections (d) and (e) of this section, the board may proceed without an administrative action, hearing, or decision to exercise the remedies set forth in said subsections. Additionally, no administrative action, hearing, or decision shall be required from the Idaho board of environmental quality prior to the board proceeding under subsections (d) and (e) of this section. In the event of the failure of any conference, conciliation, and persuasion to remedy any alleged violation, the board may cause to have issued and served upon the operator alleged to be committing such violation a formal complaint that shall specify the provisions of this chapter that the operator allegedly is

1 violating and a statement of the manner in and the extent to which said op-
 2 erator is alleged to be violating the provisions of this chapter. Such com-
 3 plaint may be served by certified mail, ~~and a.~~ A return receipt signed by the
 4 operator, an officer of a corporate operator, or the designated agent of the
 5 operator shall constitute service. The operator shall answer the complaint
 6 and request a hearing before a designated hearing officer within thirty (30)
 7 days from receipt of the complaint if matters asserted in the complaint are
 8 disputed. If the operator fails to answer the complaint and request a hear-
 9 ing, the matters asserted in the complaint shall be deemed admitted by the
 10 operator, and the board may proceed to cancel the reclamation or permanent
 11 closure plan and forfeit the financial assurance in the amount necessary to
 12 reclaim affected lands or complete the permanent closure activities. Upon
 13 request for a hearing by an operator, the board shall schedule a hearing be-
 14 fore a hearing officer appointed by the board at a time not less than thirty
 15 (30) days after the date the operator requests a hearing. The board shall is-
 16 sue subpoenas at the request of the director of the department of lands and at
 17 the request of the charged operator, and the matter shall be otherwise han-
 18 dled and conducted in accordance with chapter 52, title 67, Idaho Code. The
 19 hearing officer shall, pursuant to said hearing, enter an order in accor-
 20 dance with chapter 52, title 67, Idaho Code, which, if adverse to the opera-
 21 tor, shall designate a time period within which corrective action should be
 22 taken. The time period designated shall be long enough to allow the opera-
 23 tor, in the exercise of reasonable diligence, to rectify any failure to com-
 24 ply designated in said order. In the event that the operator takes such ac-
 25 tion as is necessary to comply with the order within the time period desig-
 26 nated in said order, no further action shall be taken by the board to compel
 27 performance under the chapter.

28 (b) Upon request of the board, ~~the attorney general shall institute~~
 29 ~~proceedings to have the financial assurance of an operator forfeited for the~~
 30 ~~violation by the operator of an order entered pursuant to this section legal~~
 31 proceedings shall be initiated, pursuant to section 58-120, Idaho Code, to
 32 have an operator's financial assurance forfeited for a violation of an order
 33 entered pursuant to this chapter.

34 (c) The forfeiture of such financial assurance shall fully satisfy
 35 all obligations of the operator to reclaim the affected land or complete
 36 permanent closure activities under the provisions of this chapter. If the
 37 violation involves an operator that has not furnished financial assurance
 38 required by this chapter, or an operator that is not required to furnish
 39 financial assurance pursuant to this chapter, or an operator who violates
 40 this chapter by performing an act not included in the original approved
 41 reclamation plan or the original approved permanent closure plan, and such
 42 departure from the plan is not subsequently approved, such operator shall
 43 be subject to a civil penalty for his failure to comply with such order in
 44 the amount determined by the board to be the anticipated cost of reason-
 45 able reclamation of affected lands or permanent closure of the cyanidation
 46 facility. Nothing in this subsection shall relieve the operator of any obli-
 47 gation, including the obligation to complete closure requirements, pursuant
 48 to a permit issued by the department of environmental quality under section
 49 39-118A, Idaho Code, or limit that department's authority to require compli-
 50 ance with such permit requirements.

(d) Notwithstanding any other provisions of this chapter, the board may commence an action without financial assurance or undertaking, ~~in the name of the state of Idaho~~ pursuant to section 58-120, Idaho Code, to enjoin any operator who is conducting operations without an approved plan required by section 47-1506, Idaho Code, or without the financial assurance required by this chapter. The court, or a judge thereof at chambers, if satisfied from the complaint or by affidavits that such acts have been or are being committed, shall issue a temporary restraining order without notice or bond, enjoining the defendant, his agents, and employees from conducting such operations without said plan or bond. Upon a showing of good cause therefor, the temporary restraining order may require the defendant to perform reclamation of the mined area in conformity with sections 47-1509 and 47-1510, Idaho Code, or to complete permanent closure activities, pending final disposition of the action. The action shall then proceed as in other cases for injunctions. If it is established at trial that the defendant has operated without an approved plan or financial assurance, the court shall enter, in addition to any other order, a decree enjoining the defendant, his agents and employees from thereafter conducting such activities or similar actions in violation of this chapter. The board may, in conjunction with its injunctive procedures, proceed in the same or in a separate action to recover from an operator who is conducting mining or exploration operations or operating a cyanidation facility without the required plan or financial assurance, the cost of performing the reclamation activities required by sections 47-1509 and 47-1510, Idaho Code, or the cost of permanent closure activities from any such operator who has not provided financial assurance to cover the cost of the required activities.

(e) Notwithstanding any other provision of this chapter, the board may, without bond or undertaking and without any administrative action, hearing or decision, ~~commence an action in the name of the state of Idaho~~ (1) to legal action pursuant to section 58-120, Idaho Code, to: enjoin a permitted mining operation or cyanidation facility when, under an existing approved plan, an operator violates the terms of the plan and where immediate and irreparable injury, loss or damage may result to the state; ~~and (2) to recover the penalties and to collect civil damages provided for by law.~~

(f) In addition to the procedures set forth in subsections (a), (d) and (e) of this section, and in addition to the civil penalty provided in subsection (c) of this section, any operator who violates any of the provisions of this chapter or rules adopted pursuant thereto, or who fails to perform the duties imposed by these provisions, or who violates any determination or order promulgated pursuant to the provisions of this chapter, shall be liable to a civil penalty of not less than five hundred dollars (\$500) nor more than two thousand five hundred dollars (\$2,500) for each day during which such violation continues, and in addition may be enjoined from continuing such violation. Such penalties shall be recoverable ~~in an action brought in the name of the state of Idaho by the attorney general~~ pursuant to section 58-120, Idaho Code, in the district court for the county where the violation, or some part thereof, occurs, or in the district court for the county wherein the defendant resides.

(1) All sums recovered related to the reclamation provisions of this chapter shall be placed in the state treasury and credited to the min-

ing reclamation fund, which is hereby created, to be used to reclaim affected lands and to administer the reclamation provisions of this chapter.

(2) All sums recovered related to the cyanidation facility closure provisions of this chapter shall be placed in the state treasury and credited to the cyanidation facility closure fund, which is hereby created. Moneys in the fund may be expended pursuant to appropriation and used to complete permanent closure activities and to administer the permanent closure provisions of this chapter.

(g) Any person who willfully and knowingly falsifies any records, information, plans, specifications, or other data required by the board or willfully fails, neglects, or refuses to comply with any of the provisions of this chapter shall be guilty of a misdemeanor and shall be punished by a fine of not less than one thousand dollars (\$1,000) and not more than five thousand dollars (\$5,000) or imprisonment not to exceed one (1) year, or both.

(h) Reclamation plans approved by the board as of July 1, 2019, shall be deemed to be in full compliance with the requirements of this chapter.

SECTION 15. That Section 58-120, Idaho Code, be, and the same is hereby amended to read as follows:

58-120. GENERAL COUNSEL TO REPRESENT THE DEPARTMENT OF LANDS. (1) ~~Counsel to the department of lands shall be provided by an attorney hired by the director of the department of lands subject to approval by the state land board. Such counsel shall be independent of the office of the attorney general but may consult with the office of the attorney general as determined by the counsel. Such counsel shall be~~ The director of the department of lands shall hire a licensed attorney, subject to approval by the state board of land commissioners, who shall be known and designated the as general counsel for the department of lands.

(2) General counsel shall:

(a) Provide all legal services for the department and represent the department in all courts and before all administrative tribunals or bodies of any nature;

(b) Upon the request of the board, provide all legal services for the board and represent the board in all courts and before all administrative tribunals or bodies of any nature; and

(c) Be independent from the office of the attorney general but may consult or contract with the office of the attorney general, as is determined to be necessary by general counsel.

~~(2) (3) General counsel may hire employ additional attorneys or contract with the office of the attorney general as necessary. Nothing in this section shall preclude the department of lands from hiring counsel separate from the general counsel, as is necessary, to effectuate the purposes of this section.~~

(4) The director or general counsel may contract with and designate outside, private counsel in any matter in which general counsel is authorized to provide representation to the director, department, or board.

(5) Nothing in this section shall preclude the director from hiring counsel separate from general counsel.

1 SECTION 16. That Section 58-312, Idaho Code, be, and the same is hereby
2 amended to read as follows:

3 58-312. OCCUPATION OF LAND WITHOUT LEASE -- PENALTY -- SUIT FOR CIVIL
4 DAMAGES. All persons using or occupying any state land without a lease from
5 the state, and all persons who shall use or occupy state lands for more than
6 thirty (30) days after the cancellation or expiration of a lease, shall be
7 regarded as trespassers, and upon conviction shall be fined in a sum of not
8 less than twenty-five dollars (\$25.00) nor more than ~~\$500~~ five hundred dol-
9 lars (\$500), or shall be punished by imprisonment in the county jail for a
10 term of not to exceed six (6) months, or by both such fine and imprisonment.
11 Any criminal suit under this section may be instituted by any person against
12 any trespasser, and regardless of the fact whether or not the said land is un-
13 der lease to any person other than the trespasser, and in case of a lessee,
14 the sureties of his bond shall be liable to a civil suit for all damages sus-
15 tained by the state by reason of the trespass. Any suit for civil damages
16 against a trespasser, may be instituted ~~by the~~ pursuant to section 58-120,
17 Idaho Code, or by the office of the attorney general in the name of the state,
18 or in the event the land trespassed upon is leased, such suit for civil dam-
19 ages may be brought by the lessee in his own name: ~~provided further, it, pro-~~
20 vided that, it shall be the duty of the prosecuting attorney to commence and
21 prosecute all criminal actions under this section, arising in his county.

22 SECTION 17. That Section 58-1308, Idaho Code, be, and the same is hereby
23 amended to read as follows:

24 58-1308. PENALTY FOR VIOLATION -- INJUNCTIVE RELIEF. (1) Any person
25 who violates any of the provisions of this chapter or any valid and autho-
26 rized regulation, rule, permit, or order of the board, or, where notified by
27 personal service or certified mail of such violation and thereafter fails to
28 cease and desist therein or obey an order of the board within the time pro-
29 vided in such notification or within thirty (30) days of service of such no-
30 tice if not otherwise provided, shall be subject to a civil penalty of not
31 less than one hundred fifty dollars (\$150) nor more than two thousand five
32 hundred dollars (\$2,500). Such civil penalty may be assessed by the board
33 in conjunction with any other administrative action; provided, that no civil
34 penalty shall be assessed unless the person was given notice and opportunity
35 for a hearing pursuant to the administrative procedure act as set forth in
36 chapter 52, title 67, Idaho Code. The board shall have authority and it shall
37 be its duty to seek injunctive relief from the appropriate district court to
38 restrain any person from encroaching on, in, or above the beds or waters of a
39 navigable lake until approval therefor has been obtained as provided in this
40 chapter.

41 (2) In addition to the civil penalty set forth in subsection (1) of this
42 section, any person who violates any of the provisions of this chapter or any
43 valid and authorized regulation, rule, permit, or order of the board, and
44 the violation causes harm to water quality, fisheries, or other public trust
45 values, shall be liable for a civil penalty not to exceed ten thousand dol-
46 lars (\$10,000) per violation or one thousand dollars (\$1,000) for each day of
47 a continuing violation, whichever is greater. The method of recovery of said
48 penalty shall be by a civil enforcement action in the district court in and

1 for the county where the violation occurred. Parties to an administrative
2 enforcement action may agree to a civil penalty as provided in this subsec-
3 tion.

4 (3) In addition to such civil penalties, any person who has been deter-
5 mined to have violated the provisions of this chapter or any valid and autho-
6 rized regulation, rule, permit, or order of the board, shall be liable for
7 any expense incurred by the state in enforcing the chapter, or in enforcing
8 or terminating any nuisance, source of environmental degradation, cause of
9 sickness or health hazard.

10 (4) No action taken pursuant to the provisions of this chapter or of any
11 other environmental protection law shall relieve any person from any civil
12 action and damages that may exist for injury or damage resulting from any vi-
13 olation of this chapter or any valid and authorized regulation, rule, per-
14 mit, or order of the board.

15 (5) Any legal action necessary to administer or enforce the provisions
16 of this chapter shall be initiated pursuant to section 58-120, Idaho Code.

17 SECTION 18. That Section 67-1406, Idaho Code, be, and the same is hereby
18 amended to read as follows:

19 67-1406. EMPLOYMENT OF ATTORNEYS RESTRICTED -- EXEMPTIONS. Notwith-
20 standing any other provision of law to the contrary, no department, agency,
21 office, officers, board, commission, institution or other state entity
22 shall be represented by or obtain its legal advice from an attorney at law
23 other than the attorney general, except as follows:

24 (1) The legislative and judicial branches of government and the gover-
25 nor may employ attorneys other than those under the supervision of the attor-
26 ney general, and such attorneys may appear in any court. However, such enti-
27 ties may, upon request, utilize the attorney general's legal services.

28 (2) Those state entities within the department of self-governing agen-
29 cies that are enumerated in section 67-2601(2)(a), (b), (g), (h), and (i),
30 Idaho Code, the department of lands, the state board of land commissioners,
31 and colleges and universities may employ private counsel to advise them and
32 represent them before courts of the state of Idaho. Such entities may also
33 obtain legal services from the attorney general on such terms as the parties
34 may agree.

35 (3) Whenever the attorney general determines that it is necessary or
36 appropriate in the public interest, the attorney general may authorize con-
37 tracts for legal services pursuant to the provisions of section 67-1409,
38 Idaho Code.

39 (4) The provisions of section 67-1401, Idaho Code, shall govern the
40 normal relationship between the attorney general and the state entities in
41 the executive branch of state government. However, if after consultation
42 with the attorney general the governor determines in his sole judgment,
43 which shall not be subject to judicial review, that counsel assigned to rep-
44 resent or give legal advice to any state entity, other than the lieutenant
45 governor, state controller, state treasurer, secretary of state, attorney
46 general, and the superintendent of public instruction, cannot effectively
47 advocate or pursue the policies of the governor, the governor shall request
48 that other counsel be provided by the attorney general, and the attorney gen-
49 eral shall provide from within the office of the attorney general or obtain

1 from outside the office of the attorney general, depending on the request of
2 the governor, qualified counsel acceptable to the governor to represent such
3 state entity.

4 (5) Any separate counsel employed pursuant to the foregoing exceptions
5 shall be compensated with funds appropriated to such state entity, unless
6 such separate counsel shall have been employed at the request or convenience
7 of the attorney general or because of a conflict in representation by the at-
8 torney general.

9 SECTION 19. An emergency existing therefor, which emergency is hereby
10 declared to exist, this act shall be in full force and effect on and after
11 July 1, 2026.